



CHAPTER xiv.

An Act to empower the South Lancashire Transport Company to run trolley vehicles on additional routes to extend the Company's powers of running public service vehicles to provide for the sub-division of the shares in the capital of the Company and for other purposes. [30th June 1948.]

WHEREAS the South Lancashire Transport Company (hereinafter called "the Company") were incorporated by the South Lancashire Tramways Act 1900 by their then name of the South Lancashire Tramways Company and under the powers contained in the South Lancashire Tramways Acts 1900 to 1911 constructed a system of tramways in the county palatine of Lancaster: 63 & 64 Vict. c. ccxliii.

And whereas by the South Lancashire Transport Act 1929 the Company were authorised to abandon their said tramways and under the powers contained in the South Lancashire Transport Acts and Order 1900 to 1932 the Company are empowered to run services of trolley vehicles and omnibuses: 19 & 20 Geo. 5. c. lxxxiii.

And whereas it is expedient that the Company should be authorised to run trolley vehicles upon the routes described in this Act and that the provisions contained in this Act with respect to trolley vehicles should be enacted:

And whereas it is expedient that the Company should be empowered to run public service vehicles as by this Act provided:

And whereas the Company are empowered to raise capital to the amount of one million four hundred and fifty thousand

pounds and to borrow on mortgage any sum not exceeding one-third of the nominal amount of the capital for the time being raised and upon which not less than one-half part has been paid up:

And whereas the Company have created and issued one hundred and ten thousand shares of ten pounds each upon which there has been called up and paid—

ten pounds per share on twelve thousand one hundred and twenty-three shares;

nine pounds per share on forty-eight thousand five hundred and fifty-two shares;

seven pounds per share on nineteen thousand five hundred and thirty-five shares;

two pounds per share on twenty-nine thousand seven hundred and ninety shares;

and the Company have raised on mortgage of their undertaking the sum of one hundred and eighty-three thousand and seventeen pounds and seven shillings:

And whereas it is expedient that the capital of the Company should be divided into shares of one pound each and that such provisions in connection with such division or consequential thereon should be made as are in this Act contained:

And whereas it is expedient that such other powers be conferred upon the Company and such other provisions be made as are in this Act more particularly set forth:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

1.—(1) This Act may be cited as the South Lancashire Transport Act 1948.

(2) The South Lancashire Transport Acts and Order 1900 to 1932 and this Act may be cited as the South Lancashire Transport Acts and Order 1900 to 1948.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Trolley vehicles and public service vehicles.

Part III.—Objects of Company.

Part IV.—Capital.

Part V.—Meetings directors &c.

Part VI.—Miscellaneous.

PART I.

—cont.

Division of Act
into Parts.

3. In this Act the several words and expressions to which Interpretation.
by the Act of 1929 or the Acts wholly or partially incorporated
therewith meanings are assigned shall have the same respec-
tive meanings unless varied by this Act or unless there be
something in the subject or context repugnant to such con-
struction And in this Act unless the context otherwise requires
the following expressions shall have the respective meanings
in this section applied to them (that is to say):—

“ Company ” means the South Lancashire Transport
Company;

“ Act of 1929 ” means the South Lancashire Transport
Act 1929;

“ existing Acts and Order ” means the South Lanca-
shire Transport Acts and Order 1900 to 1932;

“ trolley vehicle routes ” means the routes upon which
the Company are by this Act authorised to run
trolley vehicles;

“ trolley vehicles ” means the trolley vehicles provided
worked and run by the Company;

“ public service vehicle ” has the meaning given to that
expression by the Road Traffic Acts 1930 to 1947;

“ authorised capital ” means the capital of one million
four hundred and fifty thousand pounds which
the Company are authorised to raise by the creation
and issue of shares;

“ existing shares ” means the one hundred and ten
thousand shares of ten pounds each in the authorised
capital created and issued at the passing of this Act;

“ converted shares ” means the shares into which the
existing shares shall on the appointed day be con-
verted under the provisions of this Act;

“ appointed day ” means the thirty-first day of
December one thousand nine hundred and forty-
eight;

“ commission ” means the British Transport Commis-
sion and any reference to the commission in relation
to any functions of the commission which are for
the time being delegated to an executive in pur-
suance of section 5 of the Transport Act 1947 shall
be construed as a reference to that executive.

10 & 11 Geo. 6.
c. 49.

PART II.

TROLLEY VEHICLES AND PUBLIC SERVICE VEHICLES.

Additional
trolley vehicle
routes.

4. The Company may subject to the provisions of this Act work and run trolley vehicles along the following routes in the county palatine of Lancaster (that is to say):—

In the parish and urban district of Worsley—

Route No. 1 (1 mile 1.9 chains or thereabouts in length) commencing by a junction with the existing trolley vehicle system of the Company in Manchester Road East at its junction with Bolton Road and proceeding along Bolton Road and Worsley Road to and terminating in that road at the boundary of the urban district of Worsley;

In the parish and borough of Farnworth—

Route No. 2 (2 furlongs 4.8 chains or thereabouts in length) commencing by a junction with Route No. 1 hereinbefore described at its termination and proceeding along Worsley Road to and terminating by a junction with the existing trolley vehicle system of the Company at the junction of Worsley Road with Albert Road and Long Causeway;

Route No. 3 (5 furlongs 4.6 chains or thereabouts in length) commencing by a junction with the existing trolley vehicle system of the Company in Albert Road at its junction with Brackley Street and proceeding along Albert Road and Egerton Street to and terminating at the junction of Egerton Street with Bolton Road;

Route No. 4 (5 furlongs 5.8 chains or thereabouts in length) commencing by a junction with the existing trolley vehicle system of the Company in Market Street at its junction with Brackley Street and proceeding along Market Street and Bolton Road to and terminating in that road at the boundary of the borough of Farnworth.

Limiting
period for
exercise
of powers.

5. If within five years from the passing of this Act or such extended period as the Minister may upon the application of the Company allow the Company shall not have commenced to use trolley vehicles along any of the trolley vehicle routes the powers conferred by this Act with reference to the use of trolley vehicles along the route or routes along which the Company shall not have commenced to use trolley vehicles shall cease to be exerciseable as from the expiration of that period.

6. The Company may make such provision as the Minister may approve on or adjacent to any route along which the Company are for the time being authorised to use trolley vehicles or at or adjacent to either end of any such route for the turning of such trolley vehicles and may for the purpose of such turning run trolley vehicles along or across any street or road or part of a street or road or across any foot-path (whether comprised in any such trolley vehicle route or not) in which such provision is made:

Provided that before equipping any route for working trolley vehicles to include a turning point or before arranging for a new turning point the Company shall submit plans of the turning point to the Minister for approval and shall also submit a copy of such plans to the chief officer of police of the police district in which the turning point is proposed to be situate and to the local authority and the road authority and that before approving any such plans the Minister shall give to the local authority and the chief officer of police and to the road authority an opportunity of making representations with reference thereto and shall consider any such representations which may be made to him:

Provided also that—

- (a) the powers of this section shall not be exercised in respect of any footpath or of any street or road not forming part of any route along which the Company are for the time being authorised to use trolley vehicles without the consent of the local authority and of the road authority of the district in which such street or road is situate;
- (b) no provision shall be made for the turning of trolley vehicles on any road or street maintained by the commission without the consent in writing of the commission;
- (c) the consent of a local authority a road authority or the commission under the aforesaid provisos (a) and (b) shall not be unreasonably withheld and any question as to whether any such consent is unreasonably withheld shall be determined by the Minister.

7.—(1) Subject to the provisions of the Act of 1929 and this Act the Company may place erect and maintain any necessary and proper standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working the trolley vehicles by electrical power in under or over the surface of any land not being a street or road and not being land vested in or leased to a local authority and for such purpose may enter upon and open and break up such land.

As to
electrical
works.

PART II.

—cont.

9 & 10 Geo. 5.
c. 100.12 & 13 Geo. 5.
c. 46.Trolley
vehicles not to
be deemed
omnibuses.52 & 53 Vict.
c. 14.Trolley
vehicles not to
be deemed
stage carriages.
5 & 6 Vict.
c. 79.Power to run
public service
vehicles.20 & 21 Geo. 5.
c. 43.Prevention
of nuisances.

Byelaws.

33 & 34 Vict.
c. 78.Incorporation
of provisions
of Act of 1929.

(2) For the purpose of this section the provisions of section 22 of the Electricity (Supply) Act 1919 and section 11 of the Electricity (Supply) Act 1922 shall be deemed to be incorporated in this Act with the substitution of the Minister for the Minister of Fuel and Power and shall be read and construed and have effect as if the said standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus or equipment were electric lines within the meaning of the Electricity (Supply) Acts 1882 to 1936 and as if the expression " terms " in section 22 of the Electricity (Supply) Act 1919 included pecuniary terms.

8. The trolley vehicles shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889.

9. The trolley vehicles shall not be deemed to be stage carriages for the purposes of sections 13 to 15 of the Railway Passenger Duty Act 1842 but for the purpose of calculating the number of passengers in excess of the seating capacity that may be carried thereon shall be deemed to be public service vehicles within the meaning of the Road Traffic Acts 1930 to 1947 and of any regulations made by the Minister thereunder.

10. Subject to the provisions of Part IV of the Road Traffic Act 1930 as amended by subsequent Acts the Company may run public service vehicles and provide work and maintain road services of such vehicles.

11. The Company may make byelaws for the prevention of nuisances in or against any premises held by the Company in connection with their public service vehicles.

12. All byelaws made by the Company under the provisions of this Act shall be made subject to and in accordance with the provisions of the Tramways Act 1870 with respect to the making of byelaws.

13. The following provisions of the Act of 1929 shall extend and apply to and for the purposes of this Act as fully and effectually as if such provisions had been re-enacted with any necessary modifications and with the substitution of " public service vehicles " for " omnibuses " in this Act (that is to say):—

Section 13 (As to electrical works);

Section 15 (Company to have exclusive right of using trolley vehicle apparatus);

Section 17 (Licence duties on trolley vehicles);

- Section 18 (Approval of vehicles and equipment by Minister);
- Section 19 (Inspection by Minister);
- Section 20 (Company to provide reasonable service);
- Section 21 (Application of certain provisions of Tramways Act 1870 to trolley vehicles);
- Section 22 (For protection of gas and water mains of local authorities);
- Section 23 (Provisions as to motive power);
- Section 24 (Provisions as to use of electrical power);
- Section 25 (Byelaws);
- Section 26 (Application to trolley vehicles of certain provisions of existing Acts);
- Section 27 (For protection of Postmaster-General);
- Section 28 (For protection of road authorities);
- Section 29 (For protection of railway companies);
- Section 30 (Power to local authorities to purchase undertaking);
- Subsections (4) (6) and (8) of section 31 (Power to run omnibuses);
- Section 32 (Fares and charges for passengers);
- Section 33 (Passengers' luggage);
- Section 34 (Parcels &c.);
- Section 35 (Periodical revision of fares and charges);
- Section 36 (Service for labouring classes);
- Section 37 (List of fares &c. to be exhibited);
- Section 38 (As to fares on Sundays or holidays);
- Section 39 (Application of certain provisions of Act of 1900);
- Section 40 (Restricting advertisements on trolley vehicles);
- Section 41 (Power to purchase lands);
- Section 42 (Conveyance of mails);
- Section 43 (Shelters or waiting-rooms);
- Section 44 (Stopping or starting places);
- Section 45 (Through trolley vehicles and omnibuses);
- Section 46 (Power to reserve trolley vehicles and omnibuses for special purposes);
- Section 47 (Attachment of signs indicating stopping places);
- Section 48 (Cloak-rooms &c.);

PART II.
—cont.

- Section 49 (Lost property) as amended by this Act;
 Section 58 (For protection of railway and canal companies);
 Section 59 (Saving for railway and canal companies);
 Section 60 (Working and other agreements);
 Section 61 (Power to provide vehicles and equipment);
 Section 62 (Power to hold patent rights);
 Section 64 (Application of moneys);
 Section 78 (Consents of local or road authority);
 Section 79 (Orders &c. of Minister);
 Section 84 (Recovery of demands);
 Section 85 (Recovery of penalties):

Provided that for the purpose of such extension and application—

- (i) the said section 28 shall be read and have effect as if the words “ forming part of the specified routes ” were omitted from that section; and
- (ii) the said section 35 shall not apply to fares and charges on public service vehicles which the Company are by this Act authorised to run.

Lost property. 14.—(1) The Public Service Vehicles (Lost Property) Regulations 1934 (S.R. & O. 1934 No. 1268) made by the Minister in exercise of the powers vested in him under or by virtue of the Road Traffic Acts 1930 to 1947 and any regulations amending extending or in substitution for the said regulations shall extend and apply mutatis mutandis in respect of property found in the trolley vehicles of the Company.

(2) Section 49 (Lost property) of the Act of 1929 shall be read and have effect as if the words “ in any trolley vehicle or omnibus of the Company or ” and the words “ be handed to the conductor of the vehicle or ” had been omitted from that section.

For protection
of Leigh
Corporation.

15. For the protection of the mayor aldermen and burgesses of the borough of Leigh (in this section referred to as “ the corporation ”) the following provisions shall apply and have effect (that is to say):—

Nothing contained in this Act nor in Part IV of the Road Traffic Act 1930 or any statutory re-enactment or modification thereof shall in any way prejudice or affect the agreement dated the fifteenth day of June one thousand nine hundred and twenty-eight and made between the corporation of the first part the Company under their then name of the South Lan-

cashire Tramways Company of the second part and the Lancashire United Transport and Power Company Limited of the third part or in any way vary or alter the powers rights duties and obligations of the parties to the said agreement.

PART II.
—cont.

16. Notwithstanding anything contained in this Act the following provisions for the protection of the mayor aldermen and burgesses of the borough of Wigan (hereinafter referred to as "the Wigan Corporation") shall unless otherwise agreed between the Company and the Wigan Corporation apply and have effect (that is to say):—

For protection
of Wigan
Corporation.

(1) So long as the Wigan Corporation run an efficient service of public service vehicles along any road on which they are running the same on the first day of January one thousand nine hundred and forty-eight in pursuance of powers conferred by Parliament the Company shall not under the provisions of this Act run public service vehicles in competition with any service so provided by the Wigan Corporation but the provisions of this subsection shall not prevent the Company from running public service vehicles along the roads leading from Bickershaw Lane End (Platt Bridge) to Dover Lock (Abram) and to Bolton House Road (Bickershaw) respectively Provided that failure by the Wigan Corporation to afford an efficient service which is due to strikes or unforeseen circumstances or circumstances beyond the control of the Wigan Corporation shall not entitle the Company to run public service vehicles in competition therewith:

(2) Any question at any time arising between the Company and the Wigan Corporation as to whether or not the Wigan Corporation are providing an efficient service as aforesaid within the meaning of this section or as to whether any such competition as is referred to in subsection (1) hereof exists or would exist shall be determined by the Minister:

(3) The Company shall not except with the consent of the Wigan Corporation under their common seal run public service vehicles along any route in the borough of Wigan:

(4) Nothing in this Act shall prejudice or affect any rights or privileges of the Wigan Corporation under any agreement or working arrangement to which they are a party relating to transport services.

PART II.

—cont.

For protection
of certain
electricity
boards.

17. The following provisions for the protection of the British Electricity Authority and the North Western Electricity Board (each of whom are in this section referred to as "the electricity board") shall unless otherwise agreed in writing between the Company and the electricity board apply and have effect:—

- (1) In this section "apparatus" means all or any electric lines as defined in the Electric Lighting Act 1882 posts poles and other works:
- (2) The Company shall not exercise the powers conferred on them by section 7 (As to electrical works) of this Act in such a manner as to prevent or unreasonably interfere with the enjoyment or exercise by the electricity board of any easement or right possessed by them of constructing and maintaining any apparatus:
- (3) Any difference which may arise between the Company and the electricity board under this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as afore-said the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

PART III.

OBJECTS OF COMPANY.

Objects of
Company.

18.—(1) As from the passing of this Act the Company shall be deemed to be incorporated for the purpose of providing road transport services and for other purposes of the existing Acts and Order as amended by this Act and of this Act and of any other Act or Order from time to time relating to the Company.

(2) So much of section 4 (Company incorporated) of the Act of 1900 as is inconsistent with subsection (1) of this section is hereby repealed.

PART IV.

CAPITAL.

Sub-division of
shares in
existing
capital.

19.—(1) Notwithstanding anything contained in the existing Acts and Order the authorised capital shall as from the appointed day be divided into one million four hundred and fifty thousand shares of one pound each.

(2) On the appointed day—

- (i) each of the existing shares upon which there has been called up and paid the sum of ten pounds per share shall be and is hereby converted into ten fully-paid ordinary shares of one pound each;

- (ii) each of the existing shares upon which there has been called up and paid the sum of nine pounds per share shall be and is hereby converted into nine fully-paid ordinary shares of one pound each;
- (iii) each of the existing shares upon which there has been called up and paid the sum of seven pounds per share shall be and is hereby converted into seven fully-paid ordinary shares of one pound each;
- (iv) each of the existing shares upon which there has been called up and paid the sum of two pounds per share shall be and is hereby converted into two fully-paid ordinary shares of one pound each; and
- (v) the liability of holders of existing shares upon which the sum of ten pounds per share has not been fully called up and paid to further calls in respect of such shares shall be extinguished;

and such alterations in the register of shareholders as may be necessary for giving effect to the provisions of this section shall be made therein.

(3) The Company shall be entitled to declare and pay a dividend on the existing shares for the year ending on the appointed day as if the existing shares had not been converted under this Act.

(4) The sum representing the amounts not called up on the existing shares upon which less than ten pounds per share has been paid shall on the appointed day be deemed to form portion of the authorised capital which had not been issued.

20. The respective holders for the time being of the converted shares shall be entitled in respect thereof to the like rights privileges and priorities in all respects as those to which if this Act had not been passed they would have been entitled in respect of the existing shares for which the converted shares held by them are substituted by virtue of this Act.

Converted shares to confer like rights as existing shares.

21. The converted shares to which any person shall become entitled under the provisions of this Act shall be held in the same rights upon the same trusts and subject to the same powers provisions charges and liabilities as those upon or to which the existing shares for which such converted shares are substituted were held or were subject immediately before the appointed day and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument (whether executed before or after the appointed day) disposing of or affecting any such existing shares and trustees executors or administrators or other parties under disability shall and may accept such converted shares in substitution for the existing shares

Shares to be held on same trusts &c.

PART IV.
—cont.

held by them and may retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with such existing shares.

Provisions as
to exchange of
certificates.

22.—(1) The Company shall call in the certificates of the existing shares and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of converted shares for the respective amounts to which those proprietors are under this Act respectively entitled but no proprietor shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificate is to be substituted.

(2) If any such existing certificate shall have been lost or destroyed the new certificate shall be issued upon such terms as to evidence of loss or destruction and indemnity as the directors may think sufficient.

(3) Until the issue of such new certificates the existing certificates shall have and possess the same rights and advantages as if they were certificates for those respective amounts of converted shares but if any holder of any existing shares neglects or omits to send or deliver to the Company his existing certificates for the period of one year after notice in writing sent by registered letter to such holder at the address appearing in the shareholders' address book the Company may suspend the payment of any dividend declared or made payable upon or in respect of the converted shares to which such holder is entitled under the provisions of this Act until such existing certificates are sent or delivered to the Company or are proved to the reasonable satisfaction of the directors to have been lost or destroyed and until such indemnity as the directors may think fit shall have been given.

As to transfers.

23. All transfers or other dispositions of any of the existing shares shall after the appointed day and notwithstanding the provisions thereof be valid and have due effect given to them respectively as transfers of the amount of converted shares which are substituted under the provisions of this Act for the existing shares thereby expressed to be transferred or disposed of although the instrument transferring or disposing of such shares shall describe the same by the name or denomination which the shares transferred or disposed of had before conversion under the provisions of this Act and the bequest of or any covenant or provision in any will deed or agreement (whether executed before or after the appointed day) relating to any specific nominal amount of any of the existing shares shall be held to apply to a nominal amount of converted shares equal to that into which such existing shares are converted by virtue of this Act.

24.—(1) Subject to confirmation by the High Court or the chancery court of the county palatine of Lancaster the Company with the authority of three-fourths of the votes of the holders of shares or stock of the Company present in person or by proxy entitled to vote and voting at an extraordinary general meeting of the Company specially convened for the purpose may reduce the capital of the Company in any way and in particular without prejudice to the generality of the foregoing power may—

- (a) extinguish or reduce the liability on any shares or stock in respect of capital not paid up; or
- (b) either with or without extinguishing or reducing liability on any shares or stock cancel any paid-up capital which is lost or unrepresented by available assets; or
- (c) either with or without extinguishing or reducing liability on any shares or stock pay off any paid-up capital which is in excess of the wants of the Company.

(2) The Company shall give not less than twenty-one days' notice of any extraordinary general meeting to be held for the purpose of this section and such notice shall specify the terms of the resolution or resolutions to be submitted to such meeting Provided that if it is so agreed by a majority in number of the proprietors having the right to attend and vote at any such meeting being a majority together holding not less than ninety-five per centum in nominal value of the shares giving that right the meeting may be held notwithstanding that less than twenty-one days' notice has been given.

(3) For the purposes of this section the provisions of sections 56 57 59 and 60 of the Companies Act 1929 shall mutatis mutandis apply as if the Company were a company registered in accordance with the Companies Act 1929.

25. Notwithstanding anything contained in the existing Acts and Order or in Part II of the Companies Clauses Act 1863 the Company may in issuing any unissued portion of the authorised capital dispose of all or any of the shares representing the same at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company.

As to disposal
of shares.
26 & 27 Vict.
c. 118.

26.—(1) Notwithstanding anything contained in the existing Acts and Order the Company may issue any unissued portion of the authorised capital as preference shares with such rights liabilities privileges and preferences as they think fit.

Power to issue
portion of
authorised
capital as
preference
shares.

PART IV.
—cont.

(2) The Company may notwithstanding anything in section 13 of the Companies Clauses Act 1863 provide that such preference shares shall be entitled to a cumulative preference dividend not exceeding such rate as the directors at the time of issue may determine and that if the profits of any year are not sufficient to pay such dividend the deficiency shall be made good out of any funds of the Company which may be available for that purpose or out of the profits of any subsequent year.

(3) Such preference shares may from time to time be issued by the Company with such rights of priority and other rights in the distribution of the assets of the Company as the Company may think fit (including the right to repayment of the amount of preference capital at the time issued and paid up and of any arrears or deficiency of dividend thereon in priority to the ordinary share capital) and the Company may provide that when the holders of such preference shares shall have repayment in full of the amounts paid up by them and of any arrears or deficiency in the dividend which should have been paid to them thereon they shall not in respect of such shares be entitled to any further participation in the assets of the Company.

(4) Subject to the provisions of this section the provisions of sections 13 and 15 of the Companies Clauses Act 1863 shall be applicable to the issue of such preference shares and to the Company in the same way as they apply to the issue of new preference shares.

Redeemable
preference
shares.

27.—(1) The Company may issue as redeemable preference shares any preference shares which the Company are authorised to create and issue under section 26 (Power to issue portion of authorised capital as preference shares) of this Act provided that the resolution authorising the creation or issue of such redeemable preference shares (hereinafter in this section referred to as “redeemable shares”) shall specify the terms and conditions on which such redeemable shares shall be redeemed.

(2) If it is so provided in the resolution under which the redeemable shares are created or issued the Company may—

(a) call in and pay off the redeemable shares or any part thereof at any time before the date fixed for redemption; and

(b) redeem the redeemable shares or any part thereof either by paying off the same or by issuing to any shareholder subject to his consent other shares in substitution therefor and may for the purpose of providing money for paying off the redeemable shares

or of providing substituted shares create and issue new shares (either redeemable or irredeemable) or re-issue redeemable shares originally created and issued under this section. Provided that the creation and issue for the purpose of any particular class of capital does not make the total nominal amount of such capital exceed the amount of that class of capital which the Company are for the time being authorised to raise save so far as such creation and issue is for the purpose of paying off redeemable shares issued under the provisions of this section or of providing shares substituted therefor under this section.

(3) All redeemable shares created and issued in exercise of the powers of this section shall (except as may be otherwise expressly provided by the resolution creating the same) be issued subject to the condition that the Company may under the powers conferred or to be conferred by this Act and by any subsequent Act or Order create and issue further amounts of redeemable shares ranking *pari passu* therewith as regards principal as well as interest.

28. The Company on any offer of shares or securities which the Company are or may at any time be authorised to issue may pay out of capital a commission not exceeding (except with the consent of the Minister) five per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for such shares or securities or procuring or agreeing to procure subscriptions therefor whether absolute or conditional if the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid are disclosed in the prospectus advertisement or other document of the Company inviting subscriptions or offers for such shares or securities. Nothing in this section shall affect any power of the Company to pay brokerage.

29. Subject to the provisions of this Act the directors may from time to time by virtue of this section and without further or other sanction or authority exercise any power vested in the Company by section 5 (Capital) of the Act of 1900 section 11 (Additional capital) of the Act of 1901 section 19 (Power to raise additional capital) of the Act of 1903 and subsection (2) of section 65 (Borrowing powers in respect of authorised capital) of the Act of 1929 as varied by this Act and by sections 25 (As to disposal of shares) 26 (Power to issue portion of authorised capital as preference shares) 27 (Redeemable preference shares) and 28 (Power to pay commissions) of this Act and the said sections shall be deemed to have enabled the

PART IV.
—cont.

directors to raise any such sums of money as are mentioned in those sections or any of them and to have conferred upon the directors all powers necessary for the purposes thereof.

Calls.

30. In respect of any capital issued after the passing of this Act the directors may notwithstanding anything contained in the existing Acts and Order make such calls upon the respective shareholders in respect of the amount of capital respectively subscribed and for the time being owing by them of such amounts and at such times as the directors may think fit.

Company
may incur
temporary
loans.

31.—(1) The directors may for the purposes of or in connection with the undertaking borrow or raise moneys in temporary loans from bankers by means of overdrafts or otherwise or by the issue of notes or bonds of a currency of not less than five years and of not more than ten years.

(2) The powers of raising moneys conferred by this section shall be in addition to any powers for the time being of the Company to borrow on mortgage of the undertaking. Provided that the aggregate amount outstanding at any one time of the moneys raised under this section shall not exceed one hundred thousand pounds.

Saving for
powers of
Treasury.
10 & 11 Geo. 6.
c. 14.
9 & 10 Geo. 6.
c. 58.

32. It shall not be lawful to exercise the powers conferred by sections 29 (Exercise of financial powers by directors) and 31 (Company may incur temporary loans) of this Act otherwise than in compliance with the provisions of the Exchange Control Act 1947 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

PART V.

MEETINGS DIRECTORS &C.

Notice of
meetings.
8 & 9 Vict.
c. 16.

33.—(1) Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 it shall not be necessary for the Company to give public notice of any meeting of the Company whether ordinary or extraordinary.

(2) Any meeting of the Company whether ordinary or extraordinary may be convened by notice delivered at or sent by post to the registered address or other known address of each proprietor of the Company. Provided that the notice if delivered shall be delivered at such address as aforesaid not less than six clear days or if sent by post shall be prepaid and posted not less than seven clear days before the date of the meeting. In proving that any such notice has been sent by post it shall be sufficient to prove that the notice was properly addressed and put into the post and prepaid not later than the time hereby prescribed.

34. The quorum of a general meeting of the Company whether ordinary or extraordinary shall be five shareholders present in person or by proxy holding together not less than one-twentieth part of the capital of the Company for the time being issued. PART V.
—cont.
Quorum of
general
meetings.

35.—(1) At all general meetings of the Company whether ordinary or extraordinary every holder of ordinary shares shall on a show of hands be entitled to one vote and on a poll to one vote in respect of each one pound of such ordinary shares held by him. Provided that no shareholder shall be entitled to vote at any meeting in respect of any share on which any call remains unpaid. Voting.

(2) Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any share to which a preferential dividend shall be assigned.

36. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any holder of ordinary or preference shares in the capital of the Company duly authorised in writing to appoint a proxy may appoint a proxy to vote for and on behalf of such holder and for that purpose may execute on behalf of the holder the necessary form of proxy. Provided that except in cases where the instrument appointing the attorney shall have been previously registered with the Company the instrument or (if the instrument has been deposited with the central office of the Supreme Court) an office copy thereof shall be transmitted to the secretary at the same time as the instrument appointing the proxy. Appointment
of proxies.

37. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any ordinary or preference shares in the capital of the Company any one of those persons may vote at any meeting (at which holders of shares of the same class are entitled to vote) either personally or by proxy in respect of the shares as if he were solely entitled thereto but if more than one of such joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the share shall alone be entitled to vote in respect thereof. Several executors or administrators of a deceased member in whose name any share stands shall for the purpose of this section be deemed joint holders thereof. Joint holders.

38. Notwithstanding anything contained in the Companies Clauses Acts 1845 to 1889 it shall not be obligatory on the Company to keep a register of transfers of shares or a register Register
of transfers.

PART V.
—cont.

of transfers of mortgages so long as the Company in lieu of those registers shall keep a file of all transfers and evidence of transmission of any shares or mortgages of the Company which are sent to them for registration in accordance with the provisions of those Acts.

Qualification
of directors.

39. As from the appointed day the qualification of a director shall be the possession of not less than one hundred shares and every director who is not qualified at the time of his appointment as a director shall obtain his qualification within two months after his appointment and if any director does not within such two months obtain his qualification he shall vacate his office as director and shall be incapable of being reappointed a director until he has obtained his qualification.

Notice of
interest of
director in
contracts.

40. For the purposes of section 70 (As to qualification of directors) of the Act of 1929 a general notice given to the directors by one of them to the effect that he is a member of a specified company or firm and is to be regarded as interested in any contract which may after the date of the notice be made with that company or firm shall be deemed to be a sufficient declaration of interest in relation to any contract so made.

Further
provisions
as to directors.

41.—(1) If any director shall devote to the business of the Company either his whole time and attention or more of his time and attention than in the opinion of the directors would usually be so devoted by a person holding such office or shall undertake or perform any duties or services other than those which in the opinion of the directors would usually be undertaken or performed by a person holding such office or shall be called upon to perform and shall perform extra services for any of the purposes of the Company then and in any of those cases the directors may remunerate the director so doing either by a fixed sum annual or otherwise or in such other manner as shall be determined by the directors and such remuneration may at the discretion of the directors be either in addition to or in substitution for all or any part of any other remuneration to which the director may be entitled. Provided that the amount of such remuneration shall be disclosed in the next annual report of the directors or in the next annual accounts of the Company.

(2) Each director shall be reimbursed out of the funds of the Company his reasonable travelling and out-of-pocket expenses while employed on the business of the Company or attending meetings of the directors or of the Company.

Committee
of directors.

42. Section 95 (Committee of directors) of the Companies Clauses Consolidation Act 1845 shall in its application to the Company be deemed to authorise the directors to appoint

any one or more of their body as a committee for the purpose of passing transfers and sealing certificates of any shares or other securities of the Company and of executing any other powers exercisable by the directors which may from time to time be delegated to them.

PART V.
—cont.

43. A resolution in writing signed by all the directors shall be as valid and effectual as if it had been passed at a meeting of the directors duly convened and held. Resolution in writing.

44.—(1) The directors may grant such gratuities pensions or allowances or make such other payments as they may think fit to any employee or where in their opinion adequate provision is not otherwise made to the widow or family or any dependant of any employee and may if they think fit establish and maintain a fund for that purpose. Power to grant pensions &c.

(2) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee widow family or dependant as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply set aside and accumulate the funds and revenues of the Company.

(3) No pensions fund established under subsection (1) of this section to which the employees are required to contribute shall come into operation until it has been registered under the Superannuation and Other Trust Funds (Validation) Act 1927. 17 & 18 Geo. 5.
c. 41.

(4) In this section the word "employee" includes any officer workman or servant of the Company.

45. Section 98 (Proceedings to be entered in books to be signed by chairman and to be evidence) of the Companies Clauses Consolidation Act 1845 shall in its application to the Company have effect as if the words "or of the next succeeding meeting" were inserted therein after the words "shall be signed by the chairman of such meeting." Signing of minutes.

46. Any deed to which the Company are parties and any other document requiring to be sealed by the Company shall be held to be validly executed on behalf of the Company if it is sealed with the common seal of the Company and subscribed on behalf of the Company—

(a) by any two of the directors; or

(b) by any one of the directors and the secretary or other person appointed in that behalf by the directors;

and such subscription on behalf of the Company shall be equally binding whether attested by witnesses or not.

PART VI.

MISCELLANEOUS.

Power of sale.

1 & 2 Geo. 5.
c. lv.

47.—(1) The Company may at any time sell and transfer the generating station of the Company situate at Atherton in the county palatine of Lancaster and the lands buildings machinery apparatus works and conveniences connected therewith or any part thereof together with the rights powers and authorities of the Company in relation to the supply of electricity and fittings under sections 33 34 35 and 36 of the Act of 1911 to the British Electricity Authority or with the consent of the Minister to any other body company or person on such terms and conditions as may be agreed between the Company and the said authority or such other body company or person.

(2) The Company may also at any time with the consent of the Minister sell or transfer the undertaking of the Company (other than the said generating station and the lands buildings machinery apparatus works and conveniences connected therewith) authorised by the existing Acts and Order and this Act or any part thereof to any company body or person.

(3) When any such sale or transfer has been made all the rights powers authorities obligations and liabilities of the Company in respect of the property or undertaking or part thereof sold or transferred as aforesaid shall be transferred to vested in and may be exercised by and shall attach to the authority body company or person as the case may be to whom the same has been sold or transferred.

Winding up of
Company on
sale of
undertaking.

48.—(1) In the event of the sale of the whole undertaking the Company shall continue to exist only for the purpose of winding up their affairs and for that purpose the Company shall be deemed to have passed a special resolution for a members' voluntary winding up under the Companies Act 1929 but sections 118 and 284 of that Act shall not apply.

(2) It shall not be necessary for the directors to make any such declaration as is referred to in section 230 of the Companies Act 1929 but subject to the provisions of this section the Company shall be wound up under and in accordance with the provisions of the Companies Act 1929 applicable to a members' voluntary winding up as if in the case of the Company such declaration had been made but the provisions of subsections (3) (4) and (5) of section 236 of the Companies Act 1929 shall not apply.

(3) The Company shall within one month after the sale of the whole undertaking give notice by advertisement in the London Gazette of the provisions of this section as to the

voluntary winding up of the Company and the publication of the said advertisement shall be deemed to be compliance with the requirements of section 226 of the Companies Act 1929.

(4) Within three months after the sale of the whole undertaking the Company shall convene and hold a general meeting for the appointment of one or more liquidators for the purpose of winding up their affairs and distributing their assets pursuant to section 232 of the Companies Act 1929 and may fix the remuneration to be paid to the liquidator or liquidators but section 250 of the Companies Act 1929 shall not apply.

(5) The provisions relating to notice of general meetings contained in Table A of the First Schedule to the Companies Act 1929 shall notwithstanding anything in any enactment relating to the Company apply to any meetings of the Company convened by the liquidators of the Company.

49. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred upon him or the giving of consents under the existing Acts and Order and this Act and subsections (2) to (5) of section 290 (Powers of government departments to direct inquiries) of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the Company were a local authority. Inquiries by Minister. 23 & 24 Geo. 5. c. 51.

50.—(1) The following provisions of the existing Acts and Order are hereby repealed (viz.):—

The Act of 1900—
Section 7 (Calls).

The Act of 1901—
Section 12 (Calls).

The Act of 1903—
Section 23 (Restriction as to votes in respect of preferential shares).

The Act of 1929—
Section 16 (Trolley vehicles not to be deemed light locomotives or motor cars);

So much of subsection (1) of section 31 (Power to run omnibuses) as relates to the working and running by the Company of omnibuses along routes other than the specified routes and subsections (2) (3) (5) and (7) of that section;

Section 81 (Inquiries by Minister).

PART VI.
—cont.

(2) As from the appointed day section 17 (Qualification of directors) of the Act of 1900 shall be and is hereby repealed.

Saving
provisions of
Road Traffic
Acts 1930
and 1934.

51. Nothing in this Act shall be in derogation of the provisions of Part IV of the Road Traffic Act 1930 or of Part IV of the Road Traffic Act 1934.

Saving for
town and
country
planning.
22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 29.
7 & 8 Geo. 6.
c. 47.
9 & 10 Geo. 6.
c. 68.
10 & 11 Geo. 6.
c. 51.

52.—(1) The provisions of the Town and Country Planning Acts 1932 and 1943 the Town and Country Planning Act 1944 and the New Towns Act 1946 and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

(2) This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

53. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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